IN THE SUPREME COURT OF THE STATE OF KANSAS

FAITH RIVERA et al., TOM ALONZO et al., SUSAN FRICK et al.,
Plaintiffs-Appellees,

SCOTT SCHWAB, in his official capacity as Kansas Secretary of State, and
MICHAEL ABBOTT, in his official capacity as Election Commissioner of Wyandotte County, Kansas,
Defendants-Appellants,

JAMIE SHEW, in his official capacity as Douglas County Clerk,
Defendant-Appellee.

No. 22-125092-S

Appeal from the District Court of Wyandotte County

Honorable Bill Klapper, District Judge

District Court Case No. 22-CR-89 (consolidated with No. 22-CV-90 and Douglas County Case No. 22-CF-71)

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ALONZO AND RIVERA PLAINTIFFS-APPELLEES' MOTION FOR REHEARING

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INTRODUCTION

Pursuant to Rule 7.06 of the Kansas Rules of Appellate Procedure, the *Alonzo* and *Rivera* Plaintiffs respectfully move for rehearing of the portion of the Court's June 21, 2022 decision addressing the *Alonzo* and *Rivera* Plaintiffs' claim that Ad Astra 2 intentionally dilutes minority voting power in violation of Section 2 of the Kansas Bill of Rights. As explained below, this Court held that it interprets the Kansas Constitution's equal protection guarantee and its prohibition against intentional racial discrimination consistent with the Fourteenth Amendment. However, the test that it adopted to consider Plaintiffs' intentional discrimination claims is contrary to the legal test and principles that the U.S. Supreme Court and other federal courts have applied to such claims under the U.S. Constitution.

This motion does not extend to the Court's holding with respect to partisan gerrymandering. Plaintiffs realize that should they succeed in this motion, relief in time for the upcoming election is likely infeasible.

BACKGROUND

The district court found as a matter of fact that the Legislature intentionally discriminated against minority voters by purposefully dismantling Congressional District ("CD") 3 to prevent it from continuing to function as an effective "crossover district"[1] in which minority-preferred candidates could prevail. *E.g.*, J.A. VI, 105, 120. The district court also found as a matter of fact that the Legislature's actions in this regard were not solely motivated by partisanship, but rather had as at least one purpose racial discrimination. J.A. VI, 206.

In reaching that conclusion, the district court applied a legal framework for assessing intentional racial discrimination claims under Section 2 of the Kansas Bill of Rights that is nearly identical to the framework that federal courts apply to intentional discrimination claims under the Fourteenth Amendment, including redistricting claims. *Compare* J.A. VI, 197 (applying intentional discrimination standard nearly identical to that of *Village of Arlington Heights v. Metropolitan Housing Development Corp.*, 429 U.S. 252, 265-68 (1977)),[2] *with, e.g.*, *LULAC v.*

[1] As the U.S. Supreme Court has explained, a "crossover district" is one in which minority voters are less than a majority of the voting population, but where a sufficient portion of white voters "cross over" to support the minority-preferred candidate to allow that candidate to prevail. *See Bartlett v. Strickland*, 556 U.S. 1, 13 (2009) (plurality opinion).

[2] Specifically, the court identified "five non-exclusive factors that are particularly relevant to determining intent": (1) [W]hether the redistricting plan has a more negative effect on minority voters than white voters, (2) whether there were departures from the normal legislative process,

Abbott, ___ F. Supp. 3d ___, No. 3:21-cv-259, 2022 WL 1410729, at *12-23 (W.D. Tex. May 4, 2022) (three-judge court) (considering intentional vote dilution claim regarding Texas state senate district under *Arlington Heights* framework); *Perez v. Abbott*, 253 F. Supp. 3d 864, 955-62 (W.D. Tex. 2017) (three-judge court) (invaliding Texas's Dallas/Fort Worth-area congressional districts as intentionally discriminatory in violation of Fourteenth Amendment under *Arlington Heights* framework); *Texas v. United States*, 887 F. Supp. 2d 133, 159-66 (D.D.C. 2012) (three-judge court) (applying *Arlington Heights* framework to conclude that Texas's congressional and state senate plans were result of unlawful purposeful discrimination, including state senate district with combined 33% Black and Hispanic voting population), *vacated on other grounds*, 570 U.S. 928 (2013).

On appeal, this Court reversed. First, the Court held that "the equal protection guarantees contained in section 2 [of the Kansas Bill of Rights] are coextensive with the same equal protection guarantees enshrined in the Fourteenth Amendment." Op. at 36. Then, rather than applying the U.S. Supreme Court's and federal courts' framework for adjudicating *intentional* vote dilution cases under the Fourteenth Amendment (*i.e., Arlington Heights*), this Court instead held that the proper federal law framework is the test for discriminatory *effects* claims under the Voting Rights Act ("VRA"), a federal statute. Op. at 41-42. This Court thus held that intentional racial discrimination is unconstitutional only if it blocks the creation of a *majority-minority* district. Op. at 41-42.

The State Defendants had not advanced the framework adopted by the Court, and instead argued that the proper legal framework was the *Arlington Heights* test for ascertaining the presence of discriminatory intent by the Legislature. Appellants' Br. 44-48 (explaining that a "racial vote dilution claim under the Kansas Constitution . . . requires (1) discriminatory intent and (2) discriminatory effect" and repeatedly citing *Arlington Heights*). The parties thus largely agreed on the legal framework; the State simply disputed whether the district court's factual findings were sufficient to support its finding of intentional discrimination under that framework.

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(3) the events leading up to the enactment, including whether aspects of the legislative process impacted minority voters' participation, (4) whether the plan substantively departed from prior plans as it relates to minority voters, and (5) any historical evidence of discrimination that bears on the determination of intent. J.A. VI, 197. Under *Arlington Heights*, the relevant factors are (1) "[t]he impact of the official action" and whether it "bears more heavily" on minorities, (2) the "historical background of the decision," (3) the "specific sequence of events leading up to the challenged decision," (4) "[d]epartures from the normal procedural sequence," (5) "[s]ubstantive departures," and (6) "legislative . . . history." 429 U.S. at 266-68.

See id. As a result, no party had the opportunity or reason to provide briefing on this Court's decision to import the statutory test for VRA claims into the constitutional analysis for intentional racial discrimination claims, and the Court thus lacked the benefit of the parties' contribution to its analysis.

ARGUMENT

The Court should grant rehearing because (1) its decision interprets federal law but is contrary to the U.S. Supreme Court's precedent rejecting a majority-minority requirement for intentional vote dilution claims under the Fourteenth Amendment; (2) its decision is contrary to the Ninth Circuit's and multiple three-judge federal district courts' precedents on point; (3) the *Arlington Heights* framework together with generally applicable Fourteenth Amendment intentional discrimination principles govern the legal claim at issue in this case; and (4) the district court applied the correct legal test and its factual findings of intentional discrimination and discriminatory effects are supported by substantial evidence.

Plaintiffs address the difference in federal law between intent and effects claims below, but it is worth noting at the outset the (sometimes subtle) distinctions between the four types of federal legal claims related to race and redistricting.

First, a plaintiff can allege discriminatory *effects*—even where a legislature did not intend to discriminate—in violation of Section 2 of the VRA. *Thornburg v. Gingles*, 478 U.S. 30 (1986), provides the framework for these claims.

Second, a plaintiff can allege discriminatory *intent* in violation of Section 2 of the VRA. As explained below, courts eliminate the majority-minority *Gingles* requirement for these claims, but otherwise assess the totality of the circumstances pursuant to the statutory text. *See infra.*

Third, a plaintiff can allege a "racial gerrymandering" or "*Shaw*" claim, where race was the predominant consideration in redistricting in violation of the Equal Protection Clause of the Fourteenth Amendment. *See generally Shaw v. Reno*, 509 U.S. 630 (1993). These claims do not turn on an invidious motivation—even if race predominates to benefit minorities, it can be unlawful if not supported by a compelling justification. Because the consideration of race challenged in *Shaw* cases is not done for nefarious reasons, plaintiffs must meet a high burden of showing predominance.

Fourth, and key here, a plaintiff can allege intentional racial discrimination in violation of the Fourteenth and Fifteenth Amendments. These claims are adjudicated under the *Arlington Heights* framework and the traditional equal protection principles that apply to any intentional discrimination claim. And because the consideration of race as a tool to *dilute* minority votes is

an invidious motivation, race need not *predominate* to trigger liability; even if an intent to discriminate on the basis of race is just *one* of many motivations, the plan is unconstitutional. *See infra.*

Plaintiffs in this case raised only the fourth type of claim—intentional racial discrimination—under Section 2 of the Kansas Bill of Rights rather than under the Fourteenth Amendment. Although this Court announced its intent to interpret the two provisions identically, its treatment of Fourteenth Amendment law is erroneous under U.S. Supreme Court and federal court precedent.

I. This Court's holding is contrary to the U.S. Supreme Court's *Bartlett* decision.

This Court held that the permissibility of intentional racial discrimination under the federal Constitution (and thus the Kansas Constitution) turns on the *Gingles* majority-minority district requirement, but that holding is contrary to the U.S. Supreme Court's decision in *Bartlett v. Strickland*, 556 U.S. 1 (2009) (plurality opinion). There, the Court considered whether Section 2 of the VRA could require the drawing of crossover districts. *Id.* at 6, 12; *see supra* note 1 (defining "crossover district"). The Court held that "as a *statutory* matter, § 2 does not mandate creating or preserving crossover districts," and thus that "[o]nly when a geographically compact group of minority voters could form a majority in a single-member district has the first *Gingles* requirement been met." 556 U.S. at 23, 26 (emphasis added).[3] The Court's holding was based on the statutory text, which requires an equal opportunity "to elect" candidates. *Id.* at 14. The Court reasoned that for discriminatory results to be cognizable under the statute, the minority group must have the potential to "elect [a] candidate based on their own votes and without assistance from others." *Id.*

In so holding, the Court was careful to twice distinguish discriminatory *effects* cases from discriminatory *intent* cases. First, the Court expressly stated that "[o]ur holding *does not apply* to cases in which there is *intentional discrimination* against a racial minority." *Id.* at 20 (emphasis added). In doing so, the Court adopted the reasoning advanced in the U.S. Department of Justice's *amicus* brief, noting that "evidence of discriminatory intent tends to suggest that the jurisdiction is not providing an equal opportunity to minority voters to elect the representatives

[3] *Gingles* set forth three "preconditions" a plaintiff must meet to make out a colorable claim of racial vote dilution under Section 2's effects test. *See* 478 U.S. at 50. The minority group must be (1) numerous enough to constitute a majority in a reasonably compact district; (2) politically cohesive; and (3) able to show that majority voters typically vote as a bloc to defeat minority-preferred candidates. *Id.* at 50-51.

of their choice, and it is therefore unnecessary to consider the majority-minority requirement before proceeding to the ultimate totality of circumstances analysis." *Id.* (internal quotation marks omitted).

Second, the Court explained that "if there were a showing that a State intentionally drew district lines in order to destroy otherwise effective crossover districts, *that would raise serious questions under both the Fourteenth and Fifteenth Amendments*." *Id.* at 24 (emphasis added). This is precisely what Plaintiffs alleged at trial and the district court found—as a matter of fact to which deference is owed on appeal—that the Legislature did in dismantling CD 3. *See, e.g.*, J.A. VI, 203 ("The map transplants over 45,000 minority voters in metro Kansas City from CD 3 to CD 2, cracking apart a performing crossover district so that minority voters on both sides of the line can no longer elect their candidate of choice.").

This Court's holding is in direct conflict with *Bartlett*. *Contra* Op. at 36 ("We will adhere to equal protection precedent from the United States Supreme Court when applying the coextensive equal protection guarantees found in section 2 of the Kansas Constitution Bill of Rights."). Definitionally, a crossover district is one in which minority voters are *not* a majority of eligible voters. *Bartlett*, 556 U.S. at 13. If, as the *Bartlett* plurality explained, the intentional destruction of a performing crossover district violates the Fourteenth and Fifteenth Amendments, then proving that a majority-minority district could be drawn cannot possibly be a required showing. That is why the U.S. Supreme Court was careful to emphasize that its holding about majority-minority districts "does not apply to cases in which there is intentional discrimination against a racial minority." *Id.* at 20. And while *Bartlett* was a plurality decision, the four dissenting justices would have applied an even more lenient standard. In their view, Section 2 of the VRA *required* the drawing of crossover districts, and they thus necessarily agreed that at the very least the intentional destruction of such a district would violate the Fourteenth and Fifteenth Amendments, which the VRA was enacted to enforce. *See id.* at 27 (Souter, J., dissenting). Seven Justices of the Supreme Court in *Bartlett* therefore agreed that intentionally destroying a crossover district can be unlawful, rejecting the contention that the first *Gingles* precondition is a barrier to prevailing on an intentional vote dilution claim under the federal Constitution.

As explained in more detail below, that approach accords with the U.S. Constitution and common sense. The purpose of the Fourteenth Amendment is to prohibit the government from seeking to intentionally disadvantage minorities. Intentionally drawing lines based on race, when those lines have the effect of preventing minority voters from continuing to elect their preferred

candidates, is textbook discrimination. The discriminatory intent and effect necessary for a constitutional violation are present regardless of whether a statutory vote dilution claim could be advanced.[4]

Growe v. Emison, 507 U.S. 25 (1993), which this Court cited as support for its conclusion that *Gingles* applies to Fourteenth Amendment intentional vote dilution claims, Op. at 44, is not to the contrary. *Growe* considered a Section 2 VRA claim, not a Fourteenth Amendment claim. *See, e.g.*, 507 U.S. at 27, 38, 42. The *Bartlett* Court did not view itself as constrained by *Growe* when it addressed *Gingles*'s irrelevance to intentional vote dilution claims.

II. The Court's holding is contrary to precedent from the Ninth Circuit and multiple three-judge district courts.

The Court's holding is contrary to case law from the Ninth Circuit as well as multiple three-judge federal courts.[5] In *Garza v. County of Los Angeles*, 918 F.2d 763 (9th Cir. 1990), the district court concluded that the County intentionally discriminated against Hispanic voters by "intentionally fragmenting the Hispanic population among the various districts in order to dilute the effect of the Hispanic vote in future elections and preserve incumbencies of the Anglo members of the Board of Supervisors," notwithstanding the fact that at the time the redistricting was conducted, "there could be no single-member district with a majority of minority voters." *Id.* at 769. The Ninth Circuit affirmed: "We hold that, to the extent that *Gingles* does require a majority showing, it does so only in a case where there has been no proof of intentional dilution of minority voting strength." *Id.*

The Ninth Circuit highlighted the district court's conclusion that

> the County had adopted its current reapportionment plan *at least in part with the intent to fragment the Hispanic population* . . . . Thus, the plaintiffs' claim [was] not, as in *Gingles*, merely one alleging disparate impact of a seemingly neutral electoral scheme. Rather, it [was] one in which the plaintiffs ha[d] made out a claim of intentional dilution of their voting strength.

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[4]There is nothing inconsistent with the different showings for the constitutional and statutory vote dilution claims. Congress could require a greater showing to invalidate a redistricting plan based solely upon its disparate impact in the absence of evidence of discriminatory intent. But where the discrimination was *intended*, the Fourteenth Amendment is violated so long as the intended discriminatory event occurs (*i.e.*, the new district prevents the targeted minority voters from electing their preferred candidates).

[5]When a plaintiff challenges the constitutionality of a statewide or congressional redistricting plan in federal court, the case is heard by a three-judge district court, which must include at least one judge from the relevant circuit court of appeals, and any appeal is filed directly with the U.S. Supreme Court, which has mandatory jurisdiction to rule on the appeal. *See* 28 U.S.C. §§ 1253, 2284.

Id. at 770 (emphasis added). Indeed, the court noted that

> [t]o impose the requirement the County urges would prevent any redress for districting which was deliberately designed to prevent minorities from electing representatives in future elections governed by that districting. This appears to us to be a result wholly contrary to Congress' intent in enacting Section 2 of the Voting Rights Act and contrary to the equal protection principles embodied in the fourteenth amendment.

Id. at 771. The court likewise rejected the County's challenge to the sufficiency of the evidence underlying the district court's intent finding, holding that even though preserving incumbents was the primary goal of the map-drawers, "the court also found that they chose fragmentation of the Hispanic voting population as the avenue by which to achieve this self-preservation. The supervisors intended to create the very discriminatory result that occurred." *Id.* Citing *Arlington Heights*, the court explained that "discrimination need not be the sole goal in order to be unlawful." *Id.*[6]

Finally, the Ninth Circuit explained that "[e]ven where there has been a showing of intentional discrimination, plaintiffs must show that they have been injured as a result. Although the showing of injury in cases involving discriminatory intent need not be as rigorous as in effects cases, *some* showing of injury must be made . . . ." *Id.* The court found it a sufficient injury that "the supervisors' intentional splitting of the Hispanic core resulted in a situation in which Hispanics had less opportunity than did other county residents to participate in the political process and elect legislators of their choice." *Id.*

In its contrary holding, this Court reasoned that "we have found no decision in which a federal appeals court has concluded that redistricting, although not in violation of section 2, unconstitutionally dilutes minority voting strength." Op. at 44 (internal quotation marks and citation omitted). But the Ninth Circuit in *Garza* held precisely that,[7] and the U.S. Supreme Court cited *Garza*'s holding in explaining in *Bartlett* that the majority-minority requirement did

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[6]Judge Kozinski concurred, explaining that racial animus is not a necessary showing in a Fourteenth Amendment intentional discrimination claim. As an example, he explained that a homeowner who harbors "no ill feelings toward minorities" but who joins a pact not to sell his home to minorities in order to avoid lower property values in the neighborhood has "engaged in intentional racial and ethnic discrimination[.] . . . Your personal feelings toward minorities don't matter; what matters is that you intentionally took actions calculated to keep them out of your neighborhood." *Id.* at 778 n.1 (Kozinski, J., concurring).

[7]By the time the *Garza* case was tried at the end of the challenged redistricting cycle, a majority-Hispanic district could be drawn, but the court expressly affirmed the finding of intentional discrimination at the time of the plan's adoption, when no such district could be drawn. 918 F.2d at 771.

not apply to intent cases. *See Bartlett*, 556 U.S. at 20 (citing *Garza*, 918 F.2d at 771); *see also Rogers v. Lodge*, 458 U.S. 613, 622-28 (1982) (affirming invalidation of redistricting plan under U.S. Constitution for intentional racial vote dilution without applying VRA or *Gingles* preconditions).[8]

Multiple three-judge federal courts adjudicating intentional vote dilution claims have likewise rejected the application of *Gingles*'s majority-minority district requirement to intentional vote dilution claims. In May of this year, a three-judge court hearing a Fourteenth Amendment intentional vote dilution claim against a Texas state senate district ruled that *Gingles* does not apply to constitutional intentional discrimination challenges. *See LULAC*, 2022 WL 1410729, at *11. The *LULAC* court recognized that an intentional discrimination claim still requires a showing of discriminatory effect, but ruled that "[p]laintiffs may show discriminatory effect *without* making a full *Gingles* showing. . . . *Gingles* and its progeny do not articulate general legal principles for intentional discrimination but, instead, offer an interpretation of one section of the VRA. *Gingles* itself reached that interpretation by relying heavily on legislative history and scholarship interpreting the VRA." *Id.*

The *LULAC* court further explained that "[t]he intentional-vote-dilution analysis, meanwhile, is derived from the Constitution, and the *Arlington Heights* framework deployed in that analysis states merely that effects are discriminatory when they 'bear[] more heavily on one race than another.'" *Id.* (quoting *Arlington Heights*, 429 U.S. at 266). The court noted that "[i]ncorporating the *Gingles* framework into the intentional-vote-dilution analysis, thereby constitutionalizing the *Gingles* factors, would thus be an unnatural result, and it is not one this Court accepts." *Id.* The court reasoned that its conclusion adhered to *Bartlett*, where the plurality

[8] Likewise, a three-judge district court ruled in 2012 that the Texas Legislature acted with an unlawful intent to discriminate by cracking minorities apart and dismantling a district from which minority voters, with the support of a portion of white crossover voters, elected state senator Wendy Davis. *Texas*, 887 F. Supp. 2d at 162-66. Black and Hispanic voters constituted 33.4% of the district's eligible voters, *id.* at 162, but applying the *Arlington Heights* factors, the court concluded that the legislature's cracking of that minority population was the product of unlawful intentional discrimination, *id.* at 163-66. Although the decision was vacated on other grounds following the Supreme Court's invalidation of the VRA's preclearance formula in *Shelby County v. Holder*, 570 U.S. 529 (2013), the Fifth Circuit sitting *en banc* cited the case as "factually relevant as a contemporary example of State-sponsored discrimination based on the finding of a three-judge federal court," *Veasey v. Abbott*, 830 F.3d 216, 257 n.54 (5th Cir. 2016) (en banc). And just this year, another three-judge court—itself applying *Arlington Heights* to an intentional racial vote dilution claim—reiterated that assessment. *LULAC*, 2022 WL 1410729, at *18.

explained that the intentional destruction of a crossover district might violate the Fourteenth and Fifteenth Amendments. *Id.* at *12. "Under that reasoning, it must be possible for a state to violate the Constitution by dismantling a district that does not meet all three *Gingles* requirements." *Id.*

The *LULAC* court also rejected Texas's invocation of the Eleventh Circuit's decision in *Johnson v. DeSoto County Board of Commissioners*, 204 F.3d 1335 (11th Cir. 2000), which this Court cited as support for its holding in this case, Op. at 44. The *LULAC* court explained that *DeSoto* "was grounded expressly in the VRA and not the Constitution. . . . That circuit's later decisions have thus required Section 2 plaintiffs alleging discriminatory intent to make a *Gingles* showing. But *DeSoto*'s reasoning strongly suggests that the requirement is strictly statutory, so inapplicable to the constitutional theory here." *LULAC*, 2022 WL 1410729, at *12 (citations omitted). Likewise, the *LULAC* court noted that the Ninth Circuit's *Garza* decision "addressed the issue more squarely" and that the Eleventh Circuit "did not have the benefit of the Supreme Court's guidance in *Bartlett* when it decided" *DeSoto* and subsequent cases. *Id.* at *12 & n.7.[9]

This Court's decision is not only contrary to the U.S. Supreme Court's decision in *Bartlett*, the Ninth Circuit's decision in *Garza*, and multiple decisions of three-judge federal courts,[10] but is also incompatible with the equal protection clauses of both the U.S. and Kansas Constitutions. Under this Court's ruling, the Legislature could enact a redistricting plan during legislative proceedings in which map-drawers expressed overtly racially discriminatory motives

[9]Consistent with *Bartlett*, three-judge federal courts adjudicating statutory intent claims under the VRA likewise agree that the majority-minority requirement of *Gingles* does not apply even in the absence of a constitutional claim. *See Perez*, 253 F. Supp. 3d at 944 (rejecting argument that statutory VRA intentional discrimination claims required satisfying first *Gingles* precondition); *Comm. for a Fair & Balanced Map v. Ill. Bd. of Elections*, No. 1:11-CV-5065, 2011 WL 5185567, at *4 (N.D. Ill. Nov. 1, 2011) ("[T]he first *Gingles* factor is appropriately relaxed when intentional discrimination is shown . . . .").

[10]Moreover, the U.S. Department of Justice, to which Congress granted enforcement power under the VRA, *see* 52 U.S.C. § 10308(d), has consistently and repeatedly taken the position—cited approvingly by the U.S. Supreme Court in *Bartlett*—that the possibility of a majority-minority district is not a required showing in intentional discrimination claims, whether advanced under the VRA or the Fourteenth Amendment. *See, e.g.*, Brief for the United States as Amicus Curiae Supporting Affirmance at 14, *Bartlett*, 556 U.S. 1 (No. 07-689), https://www.justice.gov/sites/default/files/osg/briefs/2008/01/01/2007-0689.mer.ami.pdf; United States' Opposition to Texas's Motion to Dismiss at 17-18, *LULAC v. Abbott*, No. 3:21-cv-259 (W.D. Tex. Jan. 24, 2022), ECF No. 161 (attached in Appendix 2); Opposition to the State's and Intervenors' Motions to Dismiss at 19-22, *United States v. Georgia*, No. 1:21-cv-02575 (N.D. Ga. Aug. 11, 2021), ECF No. 58 (attached in Appendix 2).

for how particular lines were drawn and *not* violate Kansans' right to equal protection of law under the federal and state constitutions.[11]

That is not—and *cannot*—be the law, federal, Kansas, or otherwise. Such direct evidence of outright racial animus is not a necessary showing to invalidate a redistricting plan as intentionally discriminatory, *see infra* Part III, but the example places in sharp relief the error of the Court's holding.

III. Fourteenth Amendment intentional vote dilution cases are adjudicated under the *Arlington Heights* framework, which the district court substantially applied here.

A. Arlington Heights *and traditional equal protection principles, not* Gingles*, govern Fourteenth Amendment intentional vote dilution claims.*

As Defendants acknowledged in their brief, Appellants' Br. 44-48, federal courts assess claims of intentional racial vote dilution under the Fourteenth Amendment using the *Arlington Heights* framework, consistent with principles of law generally applicable to any intentional discrimination claim. *See City of Mobile v. Bolden*, 446 U.S. 55, 66-67 (1980) (plurality opinion) (explaining that *Arlington Heights* framework for assessing unconstitutional intentional discrimination applies to vote dilution claims "just as it does to other claims of racial discrimination"); *Abbott v. Perez*, 138 S. Ct. 2305, 2325 (2018) (citing *Arlington Heights* for framework for Fourteenth Amendment intentional discrimination test for redistricting challenge); *supra* Background Section (collecting cases applying *Arlington Heights* to intentional vote dilution claims).

Several principles guide courts' consideration of whether a redistricting plan constitutes intentional vote dilution in violation of the Fourteenth Amendment. First, as discussed above, "if there were a showing that a State intentionally drew district lines in order to destroy otherwise effective crossover districts, that would raise serious questions under both the Fourteenth and Fifteenth Amendments." *Bartlett*, 556 U.S. at 24. In assessing those serious questions, "'racial discrimination need only be one purpose, and not even a primary purpose,' of an official action for a violation to occur." *Veasey v. Abbott*, 830 F.3d 216, 230 (5th Cir. 2016) (en banc) (quoting *United States v. Brown*, 561 F.3d 420, 433 (5th Cir. 2009)). "[D]iscriminatory intent need not be proved by direct evidence." *Rogers*, 458 U.S. at 618. Rather, "direct or indirect circumstantial evidence, including the normal inferences to be drawn from the foreseeability of [the

[11] Such a motivation might, for example, be one of three equally weighted legislative aims so, although it would remain clear racial discrimination, it could not be disposed of under the U.S. Supreme Court's racial gerrymandering doctrine. *See supra* at 5.

legislature's] actions may be considered." *Brown*, 561 F.3d at 433. As the *en banc* Fifth Circuit has explained,

> [i]n this day and age we rarely have legislators announcing an intent to discriminate based upon race, whether in public speeches or private correspondence. To require direct evidence of intent would essentially give legislatures free rein to racially discriminate so long as they do not overtly state discrimination as their purpose and so long as they proffer a seemingly neutral reason for their actions. This approach would ignore the reality that neutral reasons can and do mask racial intent, a fact we have recognized in other contexts that allow for circumstantial evidence.

Veasey, 830 F.3d at 230.

Although discriminatory purpose "implies more than intent as volition or intent as awareness of consequences," "the inevitability or foreseeability of consequences . . . bear[s] upon the existence of discriminatory intent." *Pers. Adm'r v. Feeney*, 442 U.S. 256, 279 & n.25 (1979). Where "the adverse consequences of a law upon an identifiable group" are clear, "a strong inference that the adverse effects were desired can reasonably be drawn." *Id.* at 279.

As the *Arlington Heights* Court explained, "[d]etermining whether invidious discriminatory purpose was a motivating factor demands a sensitive inquiry into such circumstantial and direct evidence as may be available." 429 U.S. at 266. "The impact of the official action"—"whether it 'bears more heavily on one race than another'"—"may provide an important starting point." *Id.* (quoting *Washington v. Davis*, 426 U.S. 229, 242 (1976)). From there, the Court "set out five nonexhaustive factors to determine whether a particular decision was made with a discriminatory purpose": "(1) the historical background of the decision, (2) the specific sequence of events leading up to the decision, (3) departures from the normal procedural sequence, (4) substantive departures, and (5) legislative history, especially where there are contemporary statements by members of the decision-making body." *Veasey*, 830 F.3d at 230-31 (internal quotation marks omitted); *see also Arlington Heights*, 429 U.S. at 267-68. These factors "cannot be analyzed mechanically" and cannot be "reduced to a scorecard." *LULAC*, 2022 WL 1410729, at *23.

Finally, plaintiffs claiming intentional discrimination "need not prove race-based hatred or outright racism, or that any particular legislator harbored racial animosity or ill-will towards minorities because of their race." *Perez v. Abbott*, 253 F. Supp. 3d 864, 948 (W.D. Tex. 2017); *see also supra* note 6.

A plaintiff must also show a discriminatory effect, but it is not the rigorous showing required for a standalone discriminatory effects claim under the VRA. Rather, there must be "some showing" of harm. *Garza*, 918 F.2d at 771. The *Garza* court found that the fragmentation

of Hispanics created less opportunity that they could elect their preferred candidates to the County Board of Supervisors. *Id.* The *LULAC* court found a discriminatory effect sufficient for an intent claim because the plan "disperse[d] the district's minority voters . . . such that the candidates they support[ed were] far less likely to win election." 2022 WL 1410729, at *13. And in *Perez*, the court concluded that the dispersal of minority voters "kept [them] at levels in which they [could not] elect representatives of their choice." 253 F. Supp. 3d at 962.

To the extent this Court interprets the Kansas Constitution's equal protection guarantee and its prohibition against intentional racial discrimination consistent with the Fourteenth Amendment, these are the legal principles that govern this case.

B. The district court applied the correct legal framework, and its factual finding of intentional discrimination is supported by substantial evidence.

The legal framework the district court applied is substantially identical to the *Arlington Heights* framework and general principles of Fourteenth Amendment law discussed above. *See supra* note 2; J.A. VI, 195-97 (articulating principles and *Arlington Heights* factors federal courts apply to Fourteenth Amendment vote dilution claims, as explained *supra* Part III.A). The district court thus did not "appl[y] the wrong legal standard" "unmoored from precedent." Op. at 36. Rather, it applied the same legal standards that federal courts apply to Fourteenth Amendment intentional vote dilution claims.

The district court's factual findings of discriminatory intent and effects were supported by substantial evidence. Indeed, the evidence was as or more compelling than the facts upon which federal courts have found or affirmed findings of intentional vote dilution in other cases. In *Garza*, the Ninth Circuit affirmed a finding of intentional vote dilution notwithstanding the district court's determination that "the Supervisors appear to have acted primarily on the political instinct of self-preservation" because the district court had also found that the Supervisors "chose fragmentation of the Hispanic voting population as the avenue . . . to achieve this self-preservation." 918 F.2d at 771 (internal quotation marks omitted). In *Texas*, a three-judge district court found that dismantling a state senate district with a combined Black and Hispanic voting population of 33.4% was intentionally discriminatory even where "[t]here [wa]s no direct evidence" of invidious intent. 887 F. Supp. 2d at 163. The court thus considered the "circumstantial evidence" under the "*Arlington Heights* factors," noting that the new plan diminished the electoral chances of the minority-preferred candidates, that the drawing of the maps was conducted secretly with only certain senators informed of the process, that the plan

was "a *fait accompli*" by the time it was in committee, and that the process for adoption differed from prior redistricting cycles, *Id.* at 163-66.

Here, the district court's findings were even more extensive. The court found that the Legislature intentionally carved Wyandotte County's minority communities out of CD 3, converting it from the district with the largest minority population of the state's four congressional districts to the district with the smallest. J.A. VI, 203. In turn, Wyandotte County's minority voters were placed in CD 2, which the Legislature designed to ensure that it would never elect a candidate preferred by minority voters. J.A. VI, 197-98. In this manner, the district court found that the Legislature treated minority Democrats even worse than white Democrats and far worse than white Republicans: While CD 3 would be somewhat competitive and provide the occasional chance for its Democrats (now predominantly white) to prevail, the predominantly minority Democrats exported into CD 2 forever lost their opportunity to elect their preferred candidates. J.A. VI, 120-21, 197-98.

The district court emphasized several key facts that provided compelling circumstantial evidence that "Ad Astra 2 does not dilute minority votes by mistake." J.A. VI, 205. The court noted that one of Plaintiffs' experts, whose testimony the court expressly credited and adopted, characterized the map as "among the starkest cuts along racial lines that he ha[d] 'ever seen,'" with minority voters located north of the new district line and white voters to the south. J.A. VI, 197-99. The district court also found that "Ad Astra 2 was enacted under an abnormal legislative process" that rushed the bill through the Legislature at a speed usually reserved for emergency legislation and stymied meaningful public input. J.A. VI, 199-200. It found further that the irregularities in the legislative process had a particularly pronounced effect on minority voters in Wyandotte County, who "were given only two minutes to testify," far less than "white, rural voters at the listening tour stops in the western part of the state." J.A. VI, 201-02.

The district court also deemed it significant that Ad Astra 2's treatment of minority voters was an "unprecedented departure from prior plans," splitting the Kansas City metropolitan area for only the second time in one hundred years. J.A. VI, 202. The court found the nature of this split particularly "noteworthy because the racial divide along the highway [dividing CD 2 from CD 3] is widely known in Kansas, and would have been an obvious implication to those developing and enacting the plan." J.A. VI, 204. The court thus concluded, based upon its assessment of the testimony and evidence, that the supposedly neutral explanation proffered by

legislative sponsors—that they had coincidentally selected as the dividing line the one highway that also separated racial groups—was "pretext." J.A. VI, 204.

Finally, the district court considered evidence on top of the "non-exclusive" factors, including the extensive legislative discussion of the plan's effects on minority voters; the fact that CD 3's minority voting-age population is a significant statistical outlier compared to Plaintiffs' expert's race-blind simulations; and the fact that the line itself, based on a simple visual inspection of where minority and white Kansans live, evinces an intent to "surgically target[] the most heavily minority areas." J.A. VI, 205. Together, this and other evidence convinced the court "that the Legislature intended the result it achieved—districts drawn sharply along racial lines" that "intentionally and effectively dilute[] minority votes."

The district court's factual findings far exceed the substantial evidence threshold.

CONCLUSION

For the foregoing reasons, the *Alonzo* and *Rivera* Plaintiffs' motion for rehearing should be granted.

s/ Sharon Brett
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CERTIFICATE OF SERVICE

I certify that on July 12, 2022, a true and correct copy of this Motion was filed using the Court's electronic filing system which will serve all parties. On the same day a copy was electronically mailed to:

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